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File No.: EXP202209175

SANCTIONING PROCEDURE RESOLUTION

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on July 29, 2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The grounds for the complaint are as follows:

The complainant states that the respondent is responsible for a surveillance camera that is directed towards the public road, without prior administrative authorization for doing so and without being properly signposted with the required informative signs of the surveillance area.

Images of the camera's location are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The notification, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on September 14, 2022, as evidenced by the acknowledgment of receipt in the file.

On October 28, 2022, this Agency received a response indicating:

- That the respondent is responsible for the surveillance system.
- That the surveillance system consists of two cameras.
- That a photograph of the sign warning of the existence of a surveillance area is attached.
- That the maintenance of the system has been contracted with the company ***EMPRESA.1.
- That the recording of images is retained for 7 days.

THIRD: On October 29, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On March 16, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

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FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement in which, in summary, stated:

- That the images captured by the "patio 1" camera are part of the property of the respondent and do not, at any time, affect the promenade, beach, or include buildings.

In this regard, this Agency notes that, after reviewing the documents in the file, mainly the images corresponding to the area captured by the cameras, it is not observed that they excessively affect public areas or adjacent buildings in a manner contrary to data protection regulations. Therefore, the allegation is accepted, and the infringement attributed under Article 5.1.c of the GDPR is archived.

- That they do not agree with the attribution of the infringement under Article 13 of the GDPR, as the necessary and regulatory information is provided, being the sign supplied by the company responsible for the maintenance of the surveillance system.

In this regard, this Agency points out that, although the photo provided with the response to the notification does indeed show a sign warning of the surveillance area, it does not meet the

requirements established in Article 22.4 of the LOPDGDD, as it does not include either the identity of the responsible party or the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR.

- That currently, there are no cameras installed on the property due to the ongoing works being carried out on the building. This fact is evidenced by the photographs attached as annexes.

In this regard, this Agency notes that, although there are currently no surveillance cameras installed, there were cameras at the time the complaint was filed by the complainant, which constitutes a breach of the aforementioned Article 13 of the GDPR. However, logically, no measures will be imposed regarding the need to complete the information provided on the signs, as no data processing is currently being carried out.

SIXTH: On April 26, 2023, a resolution proposal was made, proposing:

That the Director of the Spanish Agency for Data Protection sanction B.B.B., with NIF ***NIF.1, for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €300 (Three hundred euros).

SEVENTH: An attempt was made to notify the resolution proposal by postal mail, but it was not collected at the respondent's address, and the acknowledgment of receipt was returned with the result "absent."

No allegations have been submitted regarding the resolution proposal.

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In view of all the actions taken by the Spanish Agency for Data Protection in the present procedure, the following facts are considered proven:

PROVEN FACTS

FIRST: It is established that, at the time the complaint was filed, the respondent had installed surveillance cameras on their property; however, the images from the field of view of these cameras indicate that they do not capture images of the public road, at least not to an extent that would be subject to sanctions under data protection regulations, nor of neighboring buildings.

SECOND: It is established that, although according to the image provided by the respondent, there are signs warning of the existence of video cameras, the information they provide is insufficient and does not meet the requirements set forth in Article 22 of the LOPDGDD, as it does not include either the identity of the data controller or the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The installation of a video camera entails the unavoidable obligation to inform about its presence through an informative device, in a sufficiently visible location, identifying at least the existence of the processing, the identity of the data controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR.

In the present case, although the respondent has provided a photograph of a sign placed next to the cameras, it is observed that it does not meet all the requirements established by Article 22 of the LOPDGDD, as the information provided is incomplete and insufficient.

Therefore, it is considered that the facts presented violate the provisions of Article 13 of the GDPR, which constitutes an infringement classified under Article 83.5 of the GDPR, which states the following:

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“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

(...)

b) the rights of the data subjects under Articles 12 to 22; (...).”

For the purposes of the limitation period, Article 74 “Minor infringements” of the LOPDGDD indicates:

“Minor infringements shall be considered and shall prescribe after one year for the remaining formal infringements of the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU)

2016/679 and, in particular, the following:

a) Non-compliance with the principle of transparency of information or the right to information of the affected party by failing to provide all the information required by Articles 13 and 14 of Regulation (EU) 2016/679.

(...)”

III

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 13 of the GDPR classified under Article 83.5 of the GDPR. The sanction to be imposed is an administrative fine of 300 euros (THREE HUNDRED EUROS).

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 300 euros (THREE HUNDRED EUROS).

SECOND: TO NOTIFY this resolution to B.B.B.

THIRD: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account no.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

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Upon receiving the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for making voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the

last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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